

Brightwater Capital Partners III, L.P.

Side Letter with Glenmoor University Endowment | Vyntic token: side_letter

This side letter is entered into by Brightwater Capital Partners III GP, LLC, as general partner of Brightwater Capital Partners III, L.P., and Glenmoor University Endowment.

1. Management Fee Reduction

With respect to Glenmoor University Endowment's \$25,000,000 commitment to Brightwater Capital Partners III, L.P., the management fee otherwise applicable to Glenmoor shall be reduced by ten basis points per annum.

Management Fee Reduction procedures are documented in internal memoranda, reviewed by finance, legal and compliance personnel where applicable, and retained in the Firm's books and records. The General Partner may modify these procedures in good faith to reflect market practice, investor requirements, legal developments or portfolio-company facts and circumstances.

2. Most Favored Nations

If the General Partner grants a better economic, reporting, transfer or governance term to any Limited Partner committing \$50,000,000 or less, Glenmoor shall have an MFN election right exercisable within 30 days after final close, subject to customary exclusions.

Most Favored Nations procedures are documented in internal memoranda, reviewed by finance, legal and compliance personnel where applicable, and retained in the Firm's books and records. The General Partner may modify these procedures in good faith to reflect market practice, investor requirements, legal developments or portfolio-company facts and circumstances.

3. Co-Investment Opportunity

For any portfolio investment requiring more than \$75,000,000 of aggregate equity capital from the Fund and affiliated vehicles, the General Partner shall use commercially reasonable efforts to offer Glenmoor a pro-rata co-investment opportunity.

Co-Investment Opportunity procedures are documented in internal memoranda, reviewed by finance, legal and compliance personnel where applicable, and retained in the Firm's books and records. The General Partner may modify these procedures in good faith to reflect market practice, investor requirements, legal developments or portfolio-company facts and circumstances.

4. Reporting

The General Partner shall provide quarterly reports within 45 days after quarter-end and annual audited financial statements within 120 days after fiscal year-end.

Reporting procedures are documented in internal memoranda, reviewed by finance, legal and compliance personnel where applicable, and retained in the Firm's books and records. The General Partner may modify these procedures in good faith to reflect market practice, investor requirements, legal developments or portfolio-company facts and circumstances.

5. Excuse Right

Upon at least ten business days' written notice, Glenmoor may be excused from participation in investments whose primary business is tobacco or controlled substances.

Excuse Right procedures are documented in internal memoranda, reviewed by finance, legal and compliance personnel where applicable, and retained in the Firm's books and records. The General Partner may modify these procedures in good faith to reflect market practice, investor requirements, legal developments or portfolio-company facts and circumstances.

6. Transfers to Affiliates

The General Partner's consent to transfers by Glenmoor to Glenmoor affiliates shall not be unreasonably withheld, conditioned or delayed, subject to legal, tax and regulatory limitations.

Transfers to Affiliates procedures are documented in internal memoranda, reviewed by finance, legal and compliance personnel where applicable, and retained in the Firm's books and records. The General Partner may modify these procedures in good faith to reflect market practice, investor requirements, legal developments or portfolio-company facts and circumstances.

7. Annual ESG Report

The General Partner shall provide an annual ESG report covering portfolio-level metrics reasonably available to the General Partner.

Annual ESG Report procedures are documented in internal memoranda, reviewed by finance, legal and compliance personnel where applicable, and retained in the Firm's books and records. The General Partner may modify these procedures in good faith to reflect market practice, investor requirements, legal developments or portfolio-company facts and circumstances.

8. Confidentiality; No Other Modification

Except as expressly set forth herein, the Partnership Agreement remains unchanged. This letter agreement is confidential and may be disclosed only as permitted by the Partnership Agreement or applicable law.

Confidentiality; No Other Modification procedures are documented in internal memoranda, reviewed by finance, legal and compliance personnel where applicable, and retained in the Firm's books and records. The General Partner may modify these procedures in good faith to reflect market practice, investor requirements, legal developments or portfolio-company facts and circumstances.